

Council Meeting
December 11, 2019
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The Claremont City Council held a meeting on Wednesday, December 11, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:32 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Kristin Kenniston
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Also present:

Edward Morris, City Manager

AGENDA CHANGES

Move New Business 10 G Resolution 2020-13 Additional Funds for Washington/Bowen Street Project – Public Hearing, up to 10 D.

REPORT OF THE SECRETARY

A motion was made by Mr. Damren and seconded by Mr. Stone to accept the minutes of the November 13, 2019, City Council meeting, as amended.

Mayor Lovett asked for two changes: a reminder note on page 1 needs to be removed, and add the word “move” under Agenda Changes on page 1.

Roll call / Voice vote: motion carried 8-0, with 1 abstain, Ms. Kier.

MAYOR’S NOTES

- Weatherization workshop December 14, Claremont MakerSpace, 10 a.m.-3 p.m.
- Thank you to all who participated in the lighting of Broad Street Park and the City center
- Thank you to Erica Sweetser & others for decorating downtown windows for the holidays
- Thank you to the Police Department for “Shop with a Cop,” to the Koloski family for serving a free dinner, and thank you to all who give during this season
- Joint Council/School Board meeting rescheduled to January 9th
- Councilor orientation December 18

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- Swearing in Councilors January 2, 6:30 p.m.
- First Night Celebration - \$1 buttons for admission into activities; contact the Parks and Recreation Department
- This is the last meeting for this Council; thank you to the Councilors leaving
- Presented Certificates of Appreciation to departing Councilors: Kristin Kenniston, Claire Lessard, and Scott Pope.
- Mr. Koloski thanked all the departing Councilors. He thanked Mr. Pope for being a mentor to him in school and was honored to work with him on the Council.
- Mr. Pope said it was an honor for him to serve the community in this position for so many years

CITY MANAGER'S REPORT

- PFAS Update – No PFAS in the City's drinking water; composted waste from the waste water treatment facility shows some of the lowest amounts in the region; a new test well will be installed at the old landfill to monitor the area
- CDBG for 56 Opera House Square - \$500,000 grant has been approved; West Claremont Center for Music and the Arts is selling tax credits to help fund the remaining portion of the renovations costs; the building will be a multi-use space; thank you to Nancy Merrill, Planning and Development Director, for all the work she has put into this project
- Human Resources Manager Position – an offer has been made to one individual
- 139 Main Street – bid to shore up the wall between 139 Main and 147 Main is over \$200,000; working with the owner of 147 Main Street to determine next steps for taking down 139 Main Street
- Tax bills will be sent out late; waiting until after school's meeting tomorrow, so they can send their information in to DRA; payments will be due 30 days after the bill is sent out
- Steve Hamilton, Interim Assessor, said the Assessing office is prepared to send out the tax bills as soon as the tax rate is set
- Mr. Hamilton introduced Bob McCarthy, who is working with Mr. Hamilton's company
- The City will receive a \$23,150 Regional Trails Program Grant for Rail Trail upgrades along Washington Street; work will begin in late spring or early summer 2020
- Airport – Claremont Municipal Airport has been awarded a Certificate of Operational Excellence
- CALEA – The Claremont Police Department has been re-awarded CALEA (Commission on Accreditation for Law Enforcement Agencies) accreditation
- Regarding the alternate forms of finance for the 139 Main Street project, Nancy Merrill, Planning and Development Director, talked about a CDFA fund for slum and blight, however, both properties are owned by private owners which may not be eligible for the funding

APPOINTMENT TO BOARDS AND COMMITTEES

Claremont Development Authority

A motion was made by Mr. Pope and seconded by Ms. Kier to re-appoint Thomas Rock to seat 6 of the Claremont Development Authority.

Voice vote: motion carried 9-0.

Claremont Energy Advisory Committee

A motion was made by Mr. Damren and seconded by Mr. Stone to re-appoint Derek Ferland to seat 3 of the Claremont Development Authority.

Voice vote: motion carried 9-0.

CITIZEN'S FORUM

None

OLD BUSINESS

Elderly Exemptions and Veterans Credit

POLICY COMMITTEE RECOMMENDATIONS REGARDING CHAPTER 18: Taxation, Article II

BACKGROUND: On October 23, the City Council directed both the Finance and Policy Committee to review Chapter 18: Taxation (Article II), and bring back recommended changes for consideration NLT December 11. The Finance Committee's focus was to review the amounts of the exemptions and credits cited in the ordinance. The Policy Committee's focus was to review the language of the ordinance, portions of which date back to 1986.

Article II is comprised of four divisions as follows:

Division 1 (Property Tax Exemption for the Legally Blind) – last updated in 1986

Division 2 (Property Tax Credit for Veterans) – last updated in 2007

Division 3 (Property Tax Exemption for the Disabled) – sections updated in 1993 and/or 2004

Division 4 (Property Tax Exemption for the Elderly) - updated in 2017

Under each Division there are numerous sections, organized as follows: definitions, exemption/credits amounts, examination of application, granting the application, appeal. IAW the City of Claremont Charter, ordinances should be reviewed and/or updated every five years. The Policy Committee met on November 7, 21 and December 5 to formulate recommendations for the Council's consideration. Each Committee member selected two communities to research, utilizing the list of communities that Chief Assessor Steve Hamilton included in his recommendation (dated October 18) to the Council. In addition to that list, Committee members also researched other municipalities to include the cities of Concord and Keene.

FINDINGS:

1. **Ordinance Language** – Municipalities with ordinances pertaining to tax exemptions and credits vary greatly in content. Claremont's ordinance cites pertinent statutes, reiterates statutory language and identifies exemptions/credit amounts. The City of Franklin's ordinance cites statutes, some of the statutory language and the tax exemption/credit amounts. The City of Keene's ordinance simply cites the RSA's adopted, authorizing what tax exemptions/credits are allowed. Many municipalities do not have ordinances on the topic, and refer people to the Assessing Office. Additionally, the language contained in the Claremont ordinance is not streamlined or consistent with current statutory language. To help determine how to best organize the content of the ordinance, both NHMA Attorney Cordell Johnston and Chief Assessor Hamilton were contacted. Both individuals recommended that the amounts of exemptions/credits be included in the ordinance. Mr. Hamilton also offered that a reference could be made to the statutory language regarding definitions, application process and appeals rather than reciting this information in the ordinance itself.
Recommendation: The Policy Committee unanimously recommends that the ordinance language be streamlined, referencing statutory language as appropriate and citing exemption/credit amounts
2. **Exemption/Credit Omissions** – Currently, Claremont's ordinance does not include a section for exemptions for the deaf. RSA 72:38-b authorizes \$15,000 to be deducted from the assessed valuation. However, a municipality may vote to increase that amount.
Recommendation: The Policy Committee unanimously recommends that RSA 72:38-b be incorporated into the ordinance. It further recommends that the Council direct the Finance Committee to consider whether the baseline amount of a \$15,000 exemption should be increased.
Neither does the Claremont ordinance include a section regarding exemptions for improvements to assist persons with disabilities and the deaf. This type of exemption would enable such persons to deduct the value of improvements to the home made for the purpose of assisting a person with disability or deafness.
Recommendation: The Policy Committee unanimously recommends that an exemption for improvements to assist persons with disabilities (RSA 72:37-a) and deaf or severely hearing impaired persons (RSA 72:38-b) be included in the ordinance.
Finally, Claremont's ordinance does not include either an all veterans' tax credit or a tax credit for combat service. IAW with RSA 72:28-b and 72:28-C respectively, the City Council would have to vote to adopt both types of credits.
Recommendation: The Policy Committee unanimously recommends that the Council not adopt the All Veterans Tax Credit at this time. When the Council voted on October 23 to raise the Veterans' Tax Credit from \$125 to 500, the tax shift increased from \$54,625 (437 veterans x 125) to \$218,500. The impact of this needs to be measured before offering tax credits to a wider pool of veterans.
Recommendation: The Policy Committee unanimously recommends that the Council adopt the tax credit for combat service. It also recommends that the Council direct the Finance Committee to consider what that amount should be. Note: Veterans must choose either the veterans' tax credit/all-veterans tax credit or the tax credit for combat service. Eligible veterans cannot apply for both.
3. **Overarching Policy Regarding Tax Credits/Exemptions** – While the purpose for granting exemptions and credits is to relieve some of the tax burden for certain segments of the

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property taxpayer population, such action creates a tax shift for other property owners. This can place a greater hardship on people who are buying their first home or trying to maintain their property during their working years. Knowing what the policy is trying to achieve is fundamental to adjusting tax exemptions/credits. Questions to consider are: "Does the Council want to give a lower benefit to a greater number of individuals?" "Does the Council want to give a higher benefit to a fewer number of individuals?" "Given the median average household income, do those who are not eligible for exemptions/credits able to pick up the financial burden created by the tax shift?" "What is the average value of a home."

Recommendation: The Policy Committee unanimously recommends that tax exemptions/credits amounts should be considered carefully and those in greatest need should be given priority. Shifting the tax burden to other groups of taxpayers is of great concern. Therefore, it is vital that the Council clearly identify the purpose for the tax exemptions/credits and what it hopes to accomplish.

In considering the above questions, the Committee favored providing a higher benefit to a fewer number of individuals in order to achieve the desired outcome of assistance to those in greatest need. During the discussion regarding elderly exemptions, we noted that the average sale of a single-family home in Claremont in 2019 was \$139,450. We also noted that it is best practice that housing costs not exceed 30% of one's income. The Committee recommends that such factors be considered, and that the Council direct the Finance Committee to establish a formula for how amounts for elderly tax exemptions/income and asset limits are changed in the future.

In closing, the Policy Committee unanimously recommends that the Council forward the ordinance to legal counsel for an update after considering the above recommendations.

Signed,
The Policy Committee

Mr. Damren said the Finance Committee accepted the recommendations of the Policy Committee and recommended same to the Council.

There was a discussion about using a formula for asset limits and income limits.

Mr. Morris said that whatever decision the Council makes will have an impact on Staff; analyzing those applications requires 2-3 hours Staff time per applicant.

Mr. Hamilton said the current Elderly Exemption income limit is \$22,000 for single and \$29,000 for married, and the asset limit is \$60,000 for single and for married. Mayor Lovett said Mr. Hamilton had made a recommendation to increase the income limit to \$23,400 for single and \$30,900 for married, and the asset limit to \$63,900. She said the Finance Committee's recommendation was \$65,000 for assets. Mr. Hamilton said the last time changes were made was in 2017.

A motion was made by Mr. Damren and seconded by Ms. Kier to increase the Elderly limits to \$65,000 for assets for both single and married.

Mr. Koloski said he wasn't comfortable accepting the recommendation from the Finance Committee because it is not properly staffed. He would like to stay with Mr. Hamilton's recommendations.

Mr. Pope would like to go with the \$65,000 in asset limits. Assets haven't increased much since he's been on the Council.

Andy Austin, Ward 3, asked if the Committee had done an analysis of who would be qualified to use this. He doesn't think the amounts are high enough. He checked other communities and most are higher.

Mr. Hamilton said there are over 100 that do qualify. It would be difficult for the Assessing Department to do the analysis. They are not social scientists. He suggested maybe UNH (University of NH) could help the City do a survey. These benefits are all paid by people inside Claremont. Also, changing the Veterans Tax Credit would increase the number of exemptions, reduce the taxable value of the City, and increase the tax rate.

Ms. Kenniston would like to wait for a survey from UNH.

Mr. Pope believes the income and asset limits are too low.

Mr. Koloski would like to hold off on making the decision regarding these exemptions and credit tonight. He would like Council to direct the City Manager to create a survey.

Ms. Kier wished the asset limits were higher. She would like to move forward tonight, but agreed there needs to be additional research done (i.e. survey).

A motion was made by Mr. Stone and seconded by Mr. O'Hearne to table the discussion of the Elderly Exemptions and Veterans Credit to the January 8th meeting.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Kier - yes

Koloski - no

Pope - no

Lovett - yes

Motion carried 7-2.

Canvass the Vote Amendment

CANVASS OF VOTE - AMENDED
CITY OF CLAREMONT **DECEMBER 5, 2019**

TO THE HONORABLE MAYOR AND CITY COUNCIL:

AT A LEGAL MEETING OF THE VOTERS OF THE CITY OF CLAREMONT ON
NOVEMBER 5, 2019 THE FOLLOWING BALLOTS WERE CAST:

MAYOR

Charlene Lovett

HAD 1,190 VOTES

ASSISTANT MAYOR

Allen Damren

HAD 1,225 VOTES

AT-LARGE COUNCILOR

Nicholas Koloski

HAD 984 VOTES

Debora Matteau

HAD 908 VOTES

Abigail Kier

HAD 708 VOTES

Erica Sweetser

HAD 700 VOTES

Christopher Fazio

HAD 547 VOTES

Patrick Lozito

HAD 493 VOTES

Bill Kennedy

HAD 473 VOTES

WARD I COUNCILOR

Andrew S. O'Hearne

HAD 322 VOTES

WARD II COUNCILOR

James Contois

HAD 377 VOTES

David Pacetti

HAD 202 VOTES

WARD III COUNCILOR

Jonathan Stone

HAD 313 VOTES

SPORTS BETTING QUESTION

Yes

HAD 777 VOTES

No

HAD 536 VOTES

MODERATOR

WARD I – Janice Fletcher	HAD <u>358</u> VOTES
WARD II – Alison Raymond	HAD <u>565</u> VOTES
WARD III - Donald Fontaine Jr. **via Write-In	HAD <u>13</u> VOTES

SUPERVISOR OF CHECKLIST

WARD I – Elyse Crossman (6 Year Term)	HAD <u>365</u> VOTES
WARD I – Sharon Chase (4 Year Term)	HAD <u>358</u> VOTES
WARD II – Lester St. Pierre	HAD <u>566</u> VOTES
WARD III – Mary Woodman	HAD <u>403</u> VOTES

WARD CLERK

WARD I – David Roark	HAD <u>366</u> VOTES
WARD II – Mary Ann Beaton	HAD <u>557</u> VOTES
WARD III – Brenda Saunders	HAD <u>396</u> VOTES

** was incorrectly listed as Donald Fontaine Sr

Gwen Melcher, City Clerk, explained that the Ward III Moderator had been listed as Donald Fontaine, Sr., and that it should have been Donald Fontaine, Jr.

A motion was made by Mr. O’Hearne and seconded by Mr. Stone that the Claremont City Council, pursuant to Article II, Section 14 of the City Charter, having duly examined the record of the number of votes given in each ward for every person voted for on the ballot, hereby declares the persons having the largest number of votes to be elected and authorizes the city clerk, or her designee, to so notify them of their election.

Voice vote: motion carried 9-0.

Discussion of Policy and Finance Committees as Standing Committees

There was a brief discussion about the importance of continuing the Policy Committee and the Finance Committee as standing committees. Mayor Lovett said that as ad hoc committees, the Mayor appointed the members, but as standing committees, the Council will appoint the members.

A motion was made by Ms. Kier and seconded by Ms. Kenniston to continue the Policy Committee as a standing committee, to begin in the new year, and the makeup will be three Council members and two citizens.

Mr. O’Hearne will vote no because he believes this should be decided by the next Council.

Voice vote: motion carried 8-1, with Mr. O’Hearne voting no.

A motion was made by Ms. Kier and seconded by Ms. Kenniston to continue the Finance Committee as a standing committee with a change in the makeup to be three Councilors and two citizens, to begin in the new year.

Mr. Pope said his research is that finance committees are made up of elected members, not citizens. He will vote no on this with the addition of citizens on the committee. It should be up to the next Council to decide if citizens sit on this committee.

Mr. Koloski believes there should be some citizen involvement.

Voice vote: motion carried 6-3, with Messrs. O’Hearne, Stone and Pope voting no.

NEW BUSINESS

Resolution 2020-12 Accept \$8,000 from McGee Toyota for July 4th Fireworks Display – Public Hearing

WHEREAS, the City of Claremont would like to have a July 4th Fireworks Display and the cost will be \$10,000.00; and

WHEREAS, the City has received a donation of \$8,000.00 from McGee Toyota for the Fireworks Display with the remaining \$2,000 being collected from donations;

WHEREAS, the City now desires to accept said donation and authorize its expenditure for the Fireworks Display;

NOW THEREFORE BE IT RESOLVED by the City Council to raise, appropriate and expend the sum of \$10,000.00 for this Summer Celebration - Account #01-481-290-0030 said sum to come from unanticipated revenue (with no impact on the tax rate), for the July 4th Fireworks Display; and

BE IT FURTHER RESOLVED that the Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 vote required)*

Mr. Morris thanked Parks and Recreation Director Mark Brislin and his staff for reaching out and building a relationship with a private entity.

Mr. Damren read the resolution into the record.

A motion was made by Mr. Damren and seconded by Mr. Koloski to adopt Resolution 2020-12 Accept \$8,000 from McGee Toyota for July 4th Fireworks Display.

Mayor Lovett opened the public hearing.

Mr. Brislin said that the July 4th celebration is the largest event in the City. The City is fortunate to have McGee Toyota sponsor the event. He thanked McGee Toyota.

Walt Stapleton, Ward 3, said he thinks the fireworks is a unifying community event. He appreciated the donation from McGee Toyota and encouraged the Council to approve the donation.

Mayor Lovett closed the public hearing.

Roll call vote:

Lessard - yes

O’Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 9-0.

Bryan Landry and other members of McGee Toyota presented the check for \$8,000 to the City.

Acceptance of Donation of Police Vehicle from Ford of Claremont – Public Hearing

Police Chief Mark Chase said the donation of a Police vehicle from Ford of Claremont was a significant savings for the City and that he is grateful for the gift.

Chris Gomes, Ford of Claremont, said he thought this is the best way to give back to the City.

A motion was made by Mr. O’Hearne and seconded by Ms. Kier to accept with sincere appreciation a donation from Ford of Claremont of a 2020 Ford Police Interceptor utility vehicle with lettering, valued at approximately \$38,000.00, for the Claremont Police Department.

Mayor Lovett opened the public hearing.

Patrick Adrian, Ward 1, asked what the value was. \$38,000.

Mayor Lovett closed the public hearing.

Voice vote: motion carried 9-0.

Shugah Valley Snow Riders Annual Permission

Todd Gile, Vice President Shugah Valley Snow Riders, said the club is asking for its annual permission to use City-owned land for snowmobiling. Regarding Lot 163-9, on River Road, where the solar array will go, nothing is happening to that trail this year, but there has been discussion about relocating that trail next year. There have been no changes to the trails since last year.

Mr. Morris said the solar property is owned by the CDA, and they will work with the solar company and the Snow Riders regarding the trail.

A motion was made by Mr. O’Hearne and seconded by Ms. Kier to authorize the city manager, or his designees, to take such actions as may be necessary to issue a written Snowmobile Trail Permission, pursuant to RSA 215-C:8, to Shugah Valley Snow Riders, Inc. for a period of one year. This Permission is for use of designated City-owned land and class VI highways, which list is to be included with the Use Permission Form and is subject to all City and state rules and regulations pertaining to use of snowmobiles on public property. This Permission is granted subject to the following condition:

- 1. The City may close one or more trails on either City-owned land or class VI highways to snowmobile use as may be required for reasons including but not limited to trail conditions, maintenance and public safety.**

Voice vote: motion carried 9-0.

Resolution 2020-13 Additional Funds for Washington/Bowen Street Project – Public Hearing

WHEREAS in June 2012 the city authorized the City Manager, or his designees, to undertake all such actions as may be necessary to apply for and, if awarded, accept a NHDOT Highway Safety Grant for implementation of certain infrastructure improvements along the Washington Street corridor and;

WHEREAS the City Council of the City of Claremont, New Hampshire, on February 8, 2006, by adoption of Resolution 2006-5, established a Municipal Transportation Improvement Capital Reserve Fund for the purpose of funding eligible local transportation projects as set forth in RSA 261:153, VI; and the **design and reconfiguration of the intersection at Washington & Bowen Streets** meet the requirements;

NOW THEREFORE, BE IT RESOLVED to raise and appropriate the sum of up to \$552,000.00 for the purpose of undertaking the above-listed project with 90% (up to \$496,800) funded by the NH DOT and the remaining 10% (up to \$55,200) funded by the city of which \$40,000 has been raised through previous budgets with the remaining amount of up to \$15,200 to come from the Municipal Transportation Improvement Capital Reserve Fund; and

BE IT FURTHER RESOLVED to authorize the City Manager and the Treasurer or their designees to withdraw said funds to have no impact on the tax rate. *(2/3 vote required)*

Nancy Merrill, Planning and Development Director, gave some background. This is for the Washington/Bowen Streets intersection. This is a 90/10 match; the City will pay 10%. The State has gone out to bid for this and the hope is to start the project in the spring. The area has a high accident rate. Access to AutoZone and Verizon will be changed. The access points will prevent left turns out. Projected completion will be by next summer.

Mr. Pope read the resolution into the record.

A motion was made by Mr. Pope and seconded by Mr. Damren to adopt Resolution 2020-13 Additional Funds for Washington/Bowen Street Project.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 9-0.

Mr. O'Hearne said he just realized the resolution for McGee Toyota's donation did not include "after public hearing duly noticed." He asked for a motion to amend the resolution and that those words be included.

A motion was made by Mr. Pope and seconded by Mr. O'Hearne to amend Resolution 2020-12 Accept \$8,000 from McGee Toyota for July 4th Fireworks Display to include "after public hearing duly noticed."

Voice vote: motion carried 9-0.

Culvert Ordinance Waiver Request

Mr. Morris said while reviewing City Codes, Vic St. Pierre, Public Works Director, noted the culvert ordinance is out of date. It mentions that all crossover culverts be made of galvanized steel or concrete. For many years, the City has used plastic culvert pipes and plastic drop inlets, which are industry standards. The City is asking the Council to waive the ordinance and allow the City to work under NH DOT standards (industry standards) for culverts, until this can be updated through the Policy Committee. However, he would like to wait to send this to the Policy Committee because there are other, more important, things coming (i.e. sidewalks).

Mayor Lovett said she has talked about sidewalks at the Planning Board and the need to have that appendix updated. She would like to have something to the Policy Committee before spring time for sidewalks. Council concurred.

A motion was made by Mr. Damren and seconded by Ms. Kenniston to temporarily waive current Municode, Appendix K, section 2d, *concrete or galvanized pipe* to be replaced by NH DOT Standard 603.

There was some discussion about the wording of the motion. Mr. Morris said the intent is to update the Code in the future.

Mr. Damren withdrew his motion. Ms. Kenniston withdrew her second.

A motion was made by Mr. Damren and seconded by Ms. Kier that the City Council waive the restriction of Appendix K, Section 1:D and authorize City staff to work under NH DOT Specifications 2016, Division 600, Section 603, Culverts and Storm Drains until such time as this section of the Municipal Code can be updated.

Roll call

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 9-0.

Water Meter Upgrade Project

City Fee Schedule – Public Hearing

Mr. St. Pierre talked about the Water Meter Upgrade Project. There are 3500 meters. There are 270 accounts that have not been changed. Those owners have been contacted four times to make the change. The City has started quarterly water billing. He is asking for a premium reading fee to cover the time it takes to drive to the sites, read the meters, cost to rent the reading equipment, and the software support. He's asking to have the premium fee of \$45 be added with January water bills.

There was a brief discussion about flagging the bill, so that it could be discussed at Central Collections when the bill is paid. Mr. Morris said the City has been sending letters since July and that if the owners are getting the bill, they are also getting the letters.

A motion was made by Mr. Damren and seconded by Ms. Kier that the Council add Water Meter Reading Fee Premium for \$45 to the City Fee Schedule for the Public Works Department.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Lessard - yes

O'Hearne - no

Stone - no

Damren - yes

Kenniston - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 7-2.

Mayor Lovett asked the City Manager to see if there is more compliance after the next quarterly billing.

Approval/Denial of Fire Union Contract

At 8:48 p.m. Ms. Kenniston recused herself and left the Council table.

Mr. Morris said the Council discussed this in a non-meeting prior to this Council meeting. Councilors would like to see the finished contract before they ratify it. This will go on the January 8th Council agenda. Mayor Lovett said if it is ratified, it will be retroactive.

At 8:52 p.m. Ms. Kenniston returned to the Council table.

Goal Setting for City Manager

Mayor Lovett said according to the City Manager's contract, within 90 days of his start date, Council is to have a discussion and come to consensus of the goals he should be working on.

Mr. O'Hearne thinks this should be done by the next Council.

Mr. Morris said he would like some of the outgoing Councilors to have input on some goals and then to finalize them at the next meeting. Mayor Lovett also wanted input from outgoing Councilors.

Councilors' suggested goals:

- Continue communicating in different ways (email, phone calls when emergent)
- Fostering relationships (employees, citizens, businesses in the City)

- Aggressively going after absentee landlords of dilapidated properties; take to court, when needed
- Blighted properties (\$121,000 in capital reserve for code enforcement); need to take care of those areas of obvious blight
- Complete Merit pay study
- Roads – paving and continue getting them in better shape
- Communication with Council and public important, beyond CCTV and newspaper
- Complete Merit Plan
- Complete negotiations (fairness and competitive rates); make it so we are able to keep people
- NICE Committee; Mr. Morris said he is setting up a meeting
- Important to ask the City Manager what his goals are
- Develop website so agendas, minutes, audio, and video, can be accessed without having to wait
- Develop comprehensive digital records management system (91-A requirements)
- More citizen engagement; Lebanon has a citizen academy
- Merit Plan – City Clerk should be its own department and not report to the Finance Director; City Clerk's office is understaffed
- Improve website
- Master Plan – make sure to incorporate it into what the City is doing
- Make City Clerk its own department
- Make Assessing its own department with a Director position
- Possibly restructure other areas so that they report directly to the City Manager and not the Finance Director
- Restructuring could be looked at by the Policy Committee (if it is the Council's desire) in conjunction with the City Manager's review
- Add another person in the City Clerk's office, extra elections next year
- Communication is key, be creative in how to reach people
- Find way to get through Merit Plan revamp; manpower is a critical resource
- Blighted properties slowing down City's ability to move forward

Jim Contois, Ward 2 resident and Councilor-Elect for Ward 2, said it was important to reconcile what the City Manager Search Committee was looking for with a new City Manager. First goal needs to be communication. Need to involve department heads to hear what their goals are and how it's working for them.

Mr. Morris said he will make a presentation at the next Council meeting. It is great to get feedback from the Council. Council needs to set strategic long-term goals for the City. He will introduce a project-based budget and how it ties back to the Master Plan. The CIP (Capital Improvements Plan) needs to tie them all together.

Rebecca McKenzie, Ward 2, loves the idea of collaboratively working with City officials, school officials, and people in the community to create a feeling of inclusiveness of the community. She would love to see a structure put together for a way that community members can engage

with City officials (i.e. a community meal). She would like to see improved transparency so people are aware of what's going on in the City.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett said Councilor Orientation is scheduled for December 18th, 6:30 p.m. Mr. Koloski said he sent an email to the Council with his concerns that the new Council should be sworn in before the orientation is held. Messrs. Stone and O'Hearne are not in favor of meeting on the 18th as Councilors agreed there would be no second meeting in December. Mr. O'Hearne would rather do the orientation after the swearing in. Mayor Lovett said the orientation is typically done before the swearing in. Mr. Koloski said he would not be able to attend a meeting on December 18th. Mayor Lovett will check with the Councilors-Elect, if not available, then the orientation will be done on January 2nd.

CONSULTATION WITH LEGAL COUNSEL

None

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(a) – PERSONNEL

A motion was made by Mr. Pope and seconded by Mr. Damren to go into the Non-Public Session pursuant to RSA 91-A:3,II(a) – Personnel and to invite Mr. Morris into the session.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 9-0.

A motion was made by Ms. Kier and seconded by Mr. O'Hearne to exit the Non-Public Session.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes
Kenniston - yes
Kier - yes
Koloski - yes
Pope - yes
Lovett - yes
Motion carried 9-0.

At 10:01 p.m. Council returned to the Public Session.

A motion was made by Ms. Kier and seconded by Mr. O’Hearne to seal the minutes because it is determined that divulgence of this information likely would affect adversely the reputation of any person other than a member of this board.

Roll call vote:
Lessard - yes
O’Hearne - yes
Stone - yes
Damren - yes
Kenniston - yes
Kier - yes
Koloski - yes
Pope - yes
Lovett - yes
Motion carried 9-0.

ADJOURNMENT

At 10:02 p.m., a motion was made by Ms. Kier and seconded by Mr. Damren to adjourn.

Voice vote: motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council